

THORNFIELD DEPARTMENT OF ENVIRONMENTAL QUALITY
OFFICE OF REGULATORY COMPLIANCE

NOTICE OF VIOLATION AND ORDER TO COMPLY

Notice No.: TEQ-NOV-2024-1187
Date Issued: August 5, 2024

TO:

Pinnacle Chemical Manufacturing Co.
Attention: Mr. Stewart G. Albrecht, Chief Compliance Officer
3300 Refinery Road
Port Caldwell, TX 77530

RE: NOTICE OF VIOLATION — THORNFIELD CLEAN AIR ACT, CHAPTER 382
FACILITY PERMIT NO. AIR-2019-4422

FINDINGS OF VIOLATION

Pursuant to an inspection conducted on July 18, 2024, by Compliance Officer Renata Okonkwo (Inspector ID: TEQ-CO-0091), the Thornfield Department of Environmental Quality ("Department") has determined that Pinnacle Chemical Manufacturing Co. ("Facility" or "Respondent") has committed the following violations at the above-referenced facility:

VIOLATION 1: Excess Volatile Organic Compound (VOC) Emissions
During the inspection period of July 14-18, 2024, continuous emissions monitoring data recorded VOC emissions from Stack 4-B of 148 parts per million (ppm) on a rolling 24-hour average basis. This exceeds the permitted limit of 85 ppm established in Permit Condition 3.4.1 by 74.1%. This constitutes a violation of Thornfield Clean Air Act Section 382.085(b).

VIOLATION 2: Incomplete Quarterly Emissions Report
Respondent failed to submit the Quarterly Emissions Report for Q2 2024 (April-June 2024), which was due on July 31, 2024. This constitutes a violation of Thornfield Clean Air Act Section 382.141(a) and Permit Condition 6.1.2.

VIOLATION 3: Deficient Stack Monitoring Equipment
Portable opacity monitor OM-7 was found to be operating with a calibration certificate expired on March 31, 2024. Data collected by OM-7 since that date is presumed unreliable. This constitutes a violation of Thornfield Clean Air Act Section 382.162 and Permit Condition 5.3.1.

REQUIRED CORRECTIVE ACTIONS AND DEADLINES

The Department hereby orders Respondent to:

ACTION 1: IMMEDIATE — Within 48 hours of receipt of this Notice
Reduce VOC emissions from Stack 4-B to at or below the permitted limit of 85 ppm. Provide written confirmation of corrective action to the Department by email to compliance@teq.thornfield.gov, Attention: NOV Case Manager.

ACTION 2: WITHIN 14 DAYS — By August 19, 2024
Submit the overdue Q2 2024 Quarterly Emissions Report in full compliance with Section 382.141(a) using the Department's eDEQ online reporting portal (portal.teq.thornfield.gov). Late submission penalties may apply pursuant to Thornfield Administrative Code Section 7.048.

ACTION 3: WITHIN 30 DAYS — By September 4, 2024
(a) Recalibrate or replace portable opacity monitor OM-7 and provide to the Department a copy of the new calibration certificate from an accredited laboratory.
(b) Submit a Data Quality Assessment Report covering the period April 1 - August 5, 2024, identifying any monitoring data affected by the deficient instrument and proposing substitute data or conservative estimates in